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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF WESTCHESTER

ALPINE TECH SOLUTIONS, INC.,
Plaintiff,
-against-
BRIGHTWAVE NETWORKS, LLC,
Defendant.

Index No. 2025/18432

DEFENDANT BRIGHTWAVE NETWORKS, LLC'S NOTICE OF MOTION
AND MOTION TO DISMISS PLAINTIFF'S COMPLAINT
WITH A REQUEST FOR INJUNCTIVE RELIEF

PLEASE TAKE NOTICE that upon the annexed affidavit of Jason E. Miller, Esq., affirmed on March 5, 2027, the exhibits attached thereto, the pleadings and proceedings heretofore had herein, and upon all prior papers on file, the undersigned will move this Court at the Westchester County Courthouse, 111 Dr. Martin Luther King Jr. Blvd., White Plains, NY 10601, on the 30th day of March, 2027, at 9:30 a.m. or as soon thereafter as counsel may be heard, for an Order pursuant to CPLR 3211(a)(7) dismissing the Complaint filed by Plaintiff Alpine Tech Solutions, Inc., in its entirety, with prejudice, together with such other and further relief as this Court deems just and proper, including a request for injunctive relief enjoining Plaintiff from pursuing any further baseless claims against Defendant Brightwave Networks, LLC, and awarding Defendant its costs and attorneys' fees.

Dated: March 5, 2027
White Plains, New York

Respectfully submitted,

MILLER & CARTER LLP
Attorneys for Defendant
230 Mamaroneck Avenue, Suite 401
White Plains, NY 10605
(914) 555-2987

By: /s/ Jason E. Miller
Jason E. Miller, Esq.
jmillercarterlaw.com

MEMORANDUM OF LAW IN SUPPORT OF DEFENDANT BRIGHTWAVE NETWORKS, LLC'S MOTION TO DISMISS
PRELIMINARY STATEMENT

1. This action arises from a contractual dispute brought by Plaintiff Alpine Tech Solutions, Inc. (-Plaintiff- or -Alpine-) against Defendant Brightwave Networks, LLC (-Defendant- or -Brightwave-), a New York limited liability company engaged primarily in telecommunications infrastructure services. Plaintiff seeks \$3,750,000 in damages for alleged breach of contract and unjust enrichment relating to a purported agreement for network development services.
2. Defendant moves pursuant to CPLR 3211(a)(7) to dismiss the Complaint for failure to state a cause of action upon which relief can be granted. The Complaint is devoid of factual allegations establishing essential elements of Plaintiff's claims, and is based upon a contract that was never validly executed. Further, in the interests of justice and to prevent further abuse of process and baseless litigation, Defendant also seeks injunctive relief restraining Plaintiff from pursuing

unfounded litigation against Defendant in violation of Rule 11 of the CPLR.

3. As demonstrated below, Plaintiff's Complaint fails as a matter of law and should be dismissed in its entirety.

BACKGROUND

4. On or about January 15, 2026, Plaintiff alleges it entered into a contract (·Agreement·) with Defendant under which Plaintiff would provide network design and consulting services. Complaint ¶ 12.

5. Plaintiff alleges that it performed services worth \$3,750,000 pursuant to this Agreement and that Defendant has failed to pay for such services, constituting breach of contract. Complaint ¶¶ 20-23.

6. Defendant denies the existence of any enforceable Agreement, denies that Plaintiff provided services as alleged, and denies any liability whatsoever.

7. The Agreement attached as Exhibit A to the Complaint is unsigned and unsigned by either party. No course of conduct or partial performance evidences acceptance of the conditions contained in the Agreement.

8. Plaintiff's purported performance consists solely of informal emails and draft proposals, none of which meet the prerequisites of a binding contract.

9. On February 12, 2027, Defendant's counsel sent Plaintiff a letter demanding a retraction of the unfounded claims and warning of sanctions for frivolous litigation. Plaintiff refused.

ARGUMENT

POINT I

THE COMPLAINT FAILS TO STATE A CLAIM FOR BREACH OF CONTRACT

10. Under New York law, to plead a breach of contract, a plaintiff must allege (1) the existence of a contract, (2) plaintiff's performance, (3) defendant's breach, and (4) damages resulting therefrom (see, e.g., *Eternity Global Master Fund Ltd. v. Morgan Guar. Trust Co. of N.Y.*, 375 F.3d 168, 177 [2d Cir. 2004]). Plaintiff's Complaint fails as to the first and second elements.

11. The Agreement is attached as Exhibit A and is unsigned by both Plaintiff and Defendant. New York law requires a written contract to be signed by the party to be charged to be enforceable (N.Y. Gen. Oblig. Law § 15-301). No valid contract exists absent an executed writing or valid exceptions such as part performance or estoppel, none of which Plaintiff sufficiently alleges or substantiates.

12. Plaintiff's allegations of performance are conclusory and unsupported by any specific actions demonstrating performance under the contract's terms. The mere submission of preliminary drafts and email communications does not rise to the level of ·substantial performance·.

13. Given these deficiencies, Plaintiff fails to set forth a valid cause of action for breach of contract, and dismissal under CPLR 3211(a)(7) is warranted.

POINT II

THE COMPLAINT FAILS TO STATE A CLAIM FOR UNJUST ENRICHMENT

14. Unjust enrichment is an equitable doctrine requiring that plaintiff show (1) defendant was enriched, (2) at plaintiff's expense, and (3) equity and good conscience require restitution (*Kaye v. Grossman*, 202 A.D.2d 242 [1st Dept. 1994]).

15. Plaintiff's unjust enrichment claim must be dismissed where a valid contract covers the subject matter of the dispute, as equitable remedies are not available if a contract governs the relationship (*Clark-Fitzpatrick, Inc. v. Long Island R.R. Co.*, 70 N.Y.2d 382, 388 [1987]). Even assuming arguendo the existence of a contract, Plaintiff pleads no facts demonstrating Defendant's unjust enrichment distinct from the alleged breach.

POINT III

PLAINTIFF-S ACTION IS FRIVOLOUS AND DEFENDANT SEEKS INJUNCTIVE RELIEF TO PREVENT FUTURE HARASSMENT

16. Defendant respectfully requests this Court exercise its inherent authority and CPLR Rule 8303-a to enjoin Plaintiff and its counsel from prosecuting claims against Defendant unless supported by a good faith factual and legal basis.

17. Plaintiff continues to prosecute baseless claims despite repeated warnings and demands to withdraw, constituting harassment and vexatious litigation intended to coerce settlements. Defendant is entitled to protection against such conduct.

18. A narrowly tailored injunction shall require Plaintiff and its counsel to certify on the record, prior to filing, that any claim brought against Defendant is supported by a reasonable inquiry into the facts and law.

19. Such injunctive relief is necessary to preserve judicial resources and protect Defendant from undue burden and expense.

POINT IV

PLAINTIFF-S CLAIMS SHOULD BE DISMISSED WITH PREJUDICE AND DEFENDANT SHOULD BE AWARDED COSTS AND ATTORNEYS- FEES

20. Due to the clear absence of any viable claim and Plaintiff-s persistent litigation abuse, dismissal with prejudice is appropriate.

21. Defendant also respectfully requests an award of its reasonable attorneys- fees and costs incurred in defending this action pursuant to CPLR 8303-a(b).

CONCLUSION

WHEREFORE, Defendant Brightwave Networks, LLC respectfully requests that this Court enter an Order:

- a) Dismissing Plaintiff-s Complaint in its entirety with prejudice pursuant to CPLR 3211(a)(7);
- b) Granting injunctive relief enjoining Plaintiff Alpine Tech Solutions, Inc. and its counsel from filing or prosecuting any further claims against Defendant in this or any other matter absent a good faith basis;
- c) Awarding Defendant its costs and attorneys- fees in defending this action; and
- d) Granting such other and further relief as the Court deems just and proper.

Dated: March 5, 2027
White Plains, New York

Respectfully submitted,

MILLER & CARTER LLP
Attorneys for Defendant Brightwave Networks, LLC

By: /s/ Jason E. Miller
Jason E. Miller, Esq.
230 Mamaroneck Avenue, Suite 401
White Plains, NY 10605
(914) 555-2987

AFFIDAVIT OF SERVICE

STATE OF NEW YORK)
COUNTY OF WESTCHESTER) ss:

Jason E. Miller, being duly sworn, deposes and says:

I am over the age of eighteen years and not a party to this action. On March 5, 2027, I caused a true and correct copy of the foregoing Motion to Dismiss with Request for Injunctive Relief to be served upon counsel for Plaintiff via electronic mail and by first-class mail addressed as follows:

Helen R. Shaw, Esq.
Shaw & Associates, PLLC
110 East Post Road, Suite 204
White Plains, NY 10601
hrshaw@shawassociates.com

/s/ Jason E. Miller
Jason E. Miller, Esq.

Sworn to before me this
5th day of March, 2027

/s/ Linda K. Robbins
Notary Public, State of New York
No. 01RB6143827
Qualified in Westchester County
Commission Expires July 15, 2029